

		right to seek the relief requested in a procedurally appropriate manner.
01498685	Sample - Elder Abuse	TENTATIVE RULING Case: Sample - Elder Abuse 01498685 Calendar No: 6 Date: 09/23/26 MOTION TO SEAL (ROA 39) Petitioner Tafrica Leggett moves to seal court records. (ROA 39.) Unless confidentiality is required by statute or rule of court, California court records are presumed to be open to the public. (Cal. Rules of Court, rule 2.550(c).) "Probate proceedings . . . are not closed proceedings. No statute exempts probate files from the status of public records." (<i>Copley Press, Inc. v. Superior Court</i> (1998) 63 Cal.App.4th 367, 376.) When individuals employ the public powers of state courts to accomplish private ends, "they do so in full knowledge of the possibly disadvantageous circumstance that the documents and records filed ... will be open to public inspection." (<i>Ibid.</i>) Absent circumstances not present here, the court may seal the records at issue only if it expressly finds facts establishing that: 1. There exists an overriding interest that overcomes the right of public access to the record; 2. The overriding interest supports sealing the record; 3. A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; 4. The proposed sealing is narrowly tailored; and 5. No less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550(d).) The party moving to have a record sealed bears the burden of proving such facts. (<i>See H.B. Fuller Company v. Doe</i> (2007) 151 Cal.App.4th 879, 894-895.) Here, Petitioner states that "documents have been filed that contain sensitive and personal information, including medical records, social security numbers, and copies of our